

**Judge Mosbarger – Law & Motion – Wednesday, July 1, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1. 22CV01203 MILLER, MARK V. TOGNERI, ROSALINA

EVENT: Review Hearing [Report on Status of Sale]

The Court will hear from counsel for the partition referee, Rob Haley, on the status of the sale of the real property.

2-3. 23CV00692 HINOJOSA, ISAIAH V. FORD MOTOR COMPANY ET AL

EVENTS: (1) Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1, Teichert, Inc.'s Demurrer to Third Amended Complaint

(2) Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1, Teichert, Inc.'s Motion to Strike Portions of Third Amended Complaint

**Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1,
Teichert, Inc.'s Demurrer to Third Amended Complaint**

Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1, Teichert, Inc.'s ("Defendant" herein) Request for Judicial Notice is granted as to the existence of the documents. However, the Court does not, for purposes of this Demurrer, accept as true the inferences, interpretations, or conclusions related to these documents proffered by Defendant.

The elements necessary to plead a cause of action for negligence are 1) duty; 2) breach; 3) causation; and 4) damages. *Toland v. Sunland Housing Group, Inc.* (1998) 18 Cal.4th 253, 267. Here, the Court finds that the Third Amended Complaint sufficiently pleads the required elements. See, Third Amended Complaint at Paragraphs 23-27. As to the completed-and-accepted doctrine, the Court agrees with Plaintiff, that the doctrine presents factual questions that cannot be resolved at the pleading stage. The Third Amended Complaint expressly alleges that the work was not accepted and/or was not completed. At this stage, those allegations must be accepted as true, and the Demurrer to the First Cause of Action for Negligence is overruled.

As to the Second Cause of Action for Strict Liability, based on Plaintiff's Opposition, and the indication therein that Plaintiff does not contend that Teichert is strictly liable as a product seller, the Demurrer to the Second Cause of Action is sustained. The Court grants leave to amend to allow Plaintiff to clarify the Doe designations, so the Second Cause of Action does not run against Teichert. Any amended Complaint is to be filed and served within 20 days' notice of this order. Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks.

**Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1,
Teichert, Inc.'s Motion to Strike Portions of Third Amended Complaint**

In pleading punitive damages, a party must plead facts from which it can be reasonably inferred that the defendant acted with malice, oppression or fraud within the meaning of